

The Child and Adolescent Labour (Prohibition And Regulation) Act, 1986

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The Child and Adolescent Labour (Prohibition And Regulation) Act, 1986

UNION OF INDIA

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The Child and Adolescent Labour (Prohibition And Regulation) Act, 1986

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The Child Labour (Prohibition And Regulation) Act, 1986

Act No. 61 of 1986

23rd.

December, 1986

PREAMBLE

An Act to prohibit the engagement of children in all occupations and to prohibit the engagement of adolescents in hazardous occupations and processes and the matters connected therewith or incidental thereto.

Be it enacted by Parliament in the Thirty-seventh Year of the Republic of India as follows:?

Part I ? Preliminary

1.

Short title, extent and commencement

(1)

This Act may be called the Child and Adolescent Labour (Prohibition and Regulation) Act, 1986.

(2)

It extends to the whole of India.

(3)

The provisions of this Act, other than Part III, shall come into force at once, and Part III shall come into force on such date as the Central Government may, by notification in the official Gazette, appoint, and different dates may be appointed for different States and for different classes of establishments.

2.

Definitions

In this Act, unless the context otherwise requires,?

(i)

"adolescent" means a person who has completed his fourteenth year of age but has not completed his eighteenth year;

(ia)

"appropriate Government" means, in relation to an establishment under the control of the Central Government or a railway administration or a major port or a mine or oilfield, the Central Government, and in all other cases, the State Government;

(ii)

"child" means a person who has not completed his fourteenth year of age or such age as may be specified in the Right of Children to Free and Compulsory Education Act, 2009 (35 of 2009), whichever is more;

(iii)

"Day" means a period of twenty-four hours beginning at midnight;

(iv)

"Establishment" includes a shop, commercial establishment, workshop, farm, residential hotel, restaurant, eating house, theatre or other place of public amusement or entertainment;

(v)

"Family", in relation to an occupier, means the individual, the wife or husband, as the case may be, of such individual, and their children, brother or sister of such individual;

(vi)

"Occupier", in relation to an establishment or a workshop, means the person who has the ultimate control over the affairs of the establishment or workshop;

(vii)

"Port authority" means any authority administering a port;

(viii)

"Prescribed" means prescribed by rules made under Sec. 18;

(ix)

"Week" means a period of seven days beginning at midnight on Saturday night or such other night as may be approved in writing for a particular area by the Inspector;

(x)

"Workshop" means any premises (including the precincts thereof) wherein any industrial process is carried on, but does not include any premises to which the provisions of Sec. 67 of the Factories Act, 1948 (63 of 1948), for the time being, apply.

Part II ? Prohibition of employment of children in certain occupations and processes

3.

Prohibition of employment of children in any occupation and process

(1)

No child shall be employed or permitted to work in any occupation or process.

(2)

Nothing in sub-section (1) shall apply where the child,--

(a)

helps his family or family enterprise, which is other than any hazardous occupations or processes set forth in the Schedule, after his school hours or during vacations;

(b)

works as an artist in an audio-visual entertainment industry, including advertisement, films, television serials or any such other entertainment or sports activities except the circus, subject to such conditions and safety measures, as may be prescribed:

Provided that no such work under this clause shall effect the school education of the child.

Explanation.-- For the purposes of this section, the expression,

(a)

"family" in relation to a child, means his mother, father, brother, sister and father's sister and brother and mother's sister and brother;

(b)

"family enterprise" means any work, profession, manufacture or business which is performed by the members of the family with the engagement of other persons;

(c)

"artist" means a child who performs or practices any work as a hobby or profession directly involving him as an actor, singer, sports person or in such other activity as may be prescribed relating to the entertainment or sports activities falling under clause (b) of sub-section (2).

3A.

Prohibition of employment of adolescents in certain hazardous occupations and processes

No adolescent shall be employed or permitted to work in any of the hazardous occupations or processes set forth in the Schedule:

Provided that the Central Government may, by notification, specify the nature of the non-hazardous work to which an adolescent may be permitted to work under this Act.

4.

Power to amend the Schedule

The Central Government, after giving by notification in the official Gazette, not less than three months' notice of its intention so to do, may, by like notification, add to, or, omit from, the Schedule any hazardous occupation or process and thereupon the Schedule shall be deemed to have been amended accordingly.

5.

Technical Advisory Committee

(1)

The Central Government may, by notification in the official Gazette, constitute an advisory committee to be called the Technical Advisory Committee (hereafter in this section referred to as the Committee) to advise the Central Government for the purpose of addition or occupations and processes to the Schedule.

(2)

The Committee shall consist of a Chairman and such other members not exceeding ten, as may be appointed by the Central Government.

(3)

The Committee shall meet as often as it may consider necessary and shall have power to regulate its own procedure.

(4)

The Committee may, if it deems it necessary so to do, constitute one or more sub-committees and may appoint to any such sub-committee, whether generally or for the consideration of any particular matter, any person who is not a member of the Committee.

(5)

The term of office of, the manner of filling casual vacancies in the office of, and the allowances, if any, payable to, the

Chairman and other members of the Committee, and the conditions and restrictions subject to which the Committee may appoint any person who is not a member of the Committee as a member of any of its sub-committees shall be such as may be prescribed.

Part III ? Regulation of conditions of work of adolescents

6.

Application of Part

The provisions of this Part shall apply to an establishment or a class of establishments in which none to the occupations or processes referred to in section 3A is carried on.

7.

Hours and period of work

(1)

No adolescent shall be required or permitted to work in any establishment in excess of such number of hours, as may be prescribed for such establishment or class of establishments.

(2)

The period of work on each day shall be so fixed that no period shall exceed three hours and that no adolescent shall work for more than three hours before he has had an interval for rest for at least one hour.

(3)

The period of work of a adolescent shall be so arranged that inclusive of his interval for rest, under sub-section (2), it shall not be spread over more than six hours, including the time spent in waiting for work on any day.

(4)

No adolescent shall be permitted or required to work between 7 p.m. and 8 a.m.

(5)

No adolescent shall be required or permitted to work overtime.

(6)

No adolescent shall be required or permitted to work in any establishment on any day on which he has already been working in another establishment.

8.

Weekly holidays

Every adolescent employed in an establishment shall be allowed in each week, a holiday of one whole day, which day shall be specified by the occupier in a notice permanently exhibited in a conspicuous place in the establishment and the day so specified shall not be altered by the occupier more than once in three months.

9.

Notice to inspector

(1)

Every occupier in relation to an establishment in which a adolescent was employed or permitted to work immediately before the date of commencement of this Act in relation to such establishment shall, within a period of thirty days from such commencement, send to the Inspector within whose local limits the establishment is situated, a written notice containing the following particulars, namely :?

(a)

The name and situation of the establishment;

(b)

The name of the person in actual management of the establishment;

(c)

The address to which communications relating to the establishment should be sent; and

(d)

The nature of the occupation or process carried on in the establishment.

(2)

Every occupier, in relation to an establishment, who employs, or permits to work, any adolescent after the date of commencement of this Act in relation to such establishment, shall, within a period of thirty days from the date of such employment, send to the Inspector within whose local limits the establishment is situated, a written notice containing the particulars as are mentioned in sub- subsection (1).

Explanation.—For the purposes of sub-sections (1) and (2), "date of commencement of this Act, in relation to an establishment" means the date of bringing into force of this Act in relation to such establishment.

(3)

Nothing in sections 7, 8 and 9 shall apply to any establishment wherein any process is carried on by the occupier with the aid of his family or to any school established by, or receiving assistance or recognition from, Government.

10.

Disputes as to age

If any question arises between an Inspector and an occupier as to the age of any adolescent who is employed or is permitted to work by him in an establishment, the question shall, in the absence of a certificate as to the age of such adolescent granted by the prescribed medical authority, be referred by the Inspector for decision to the prescribed medical authority.

11.

Maintenance of register

There shall be maintained by every occupier in respect of adolescent employed or permitted to work in any establishment, a register to be available for inspection by an Inspector at all times during working hours or when work is being carried on in any such establishment, showing—

(a)

the name and date of birth of every adolescent so employed or permitted to work;

(b)

hours and periods of work of any such adolescent and the intervals of rest to which he is entitled;

(c)

the nature of work of any such adolescent; and

(d)

such other particulars as may be prescribed.

12.

Display of notice containing abstract of sections 3A and 14

Every railway administration, every port authority and every occupier shall cause to be displayed in a conspicuous and accessible place at every station on its railway or within the limits of a port or at the place of work, as the case may be, a notice in the local language and in the English language containing an abstract of sections 3A and 14.

13.

Health and safety

(1)

The appropriate Government may, by notification in the official Gazette, make rules for the health and safety of the adolescent employed or permitted to work in any establishment or class of establishments.

(2)

Without prejudice to the generality of the foregoing provisions, the said rules may provide for all or any of the following matters, namely:—

(a)

cleanliness in the place of work and its freedom from nuisance;

(b)

disposal of wastes and effluents;

(c)

ventilation and temperature;

(d)

dust and fume;

(e)

artificial humidification;

(f)

lighting;

(g)

drinking water;

- (h)
latrine and urinals;
- (i)
spittoons;
- (j)
fencing of machinery;
- (k)
work at or near machinery in motion;
- (l)
employment of adolescent on dangerous machines;
- (m)
instructions, training and supervision in relation to employment of adolescent on dangerous machines;
- (n)
device for cutting off power;
- (o)
self-acting machiners;
- (p)
easing of new machinery;
- (q)
floor, stairs and means of access;
- (r)
pits, sumps, openings in floors, etc.;
- (s)
excessive weights;
- (t)
protection of eyes;
- (u)
explosive or inflammable dust, gas, etc.;
- (v)
precautions in case of fire;
- (w)
maintenance of buildings; and
- (x)
safety of buildings and machinery.

Part IV ? Miscellaneous

14.

Penalties

(1)

Whoever employs any child or permits any child to work in contravention of the provisions of section 3 shall be punishable with imprisonment for a term which shall not be less than six months but which may extend to two years, or with fine which shall not be less than twenty thousand rupees but which may extend to fifty thousand rupees, or with both:

Provided that the parents or guardians of such children shall not be punished unless they permit such child for commercial purposes in contravention of the provisions of section 3.

(1A)

Whoever employs any adolescent or permits any adolescent to work in contravention of the provisions of section 3A shall be punishable with imprisonment for a term which shall not be less than six months but which may extend to two years or with fine which shall not be less than twenty thousand rupees but which may extend to fifty thousand rupees, or with both:

Provided that the parents or guardians of such adolescent shall not be punished unless they permit such adolescent to work in contravention of the provisions of section 3A.

(1B)

Notwithstanding anything contained in sub-sections (1) and (1A) the parents or guardians of any child or adolescent referred to in section 3 or section 3A, shall not be liable for punishment, in case of the first offence.

(2)

Whoever, having been convicted of an offence under section 3 or section 3A commits a like offence afterwards, he shall be punishable with imprisonment for a term which shall not be less than one year but which may extend to three years.

(2A)

Notwithstanding anything contained in sub-section (2), the parents or guardian having been convicted of an offence under section 3 or section 3A, commits a like offence afterwards, he shall be punishable with a fine which may extend to ten thousand rupees.

(3)

Whoever?

(d)

fails to comply with or contravenes any other provisions of this Act or the rules made thereunder, shall be punishable with simple imprisonment which may extend to one month or with fine which may extend to ten thousand rupees or with both.

14A.

Offences to be Cognizable

Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), any offence committed by an employer and punishable under section 3 or section 3A shall be cognizable.

14B.

Child and Adolescent Labour Rehabilitation Fund

(1)

The appropriate Government shall constitute a Fund in every district or for two or more districts to be called the Child and Adolescent Labour Rehabilitation Fund to which the amount of the fine realized from the employer of the child and adolescent, within the jurisdiction of such district or districts, shall be credited.

(2)

The appropriate Government shall credit an amount of fifteen thousand rupees to the Fund for each child or adolescent for whom the fine amount has been credited under sub-section (1).

(3)

The amount credited to the Fund under sub-sections (1) and (2) shall be deposited in such banks or invested in such manner, as the appropriate Government may decide.

(4)

The amount deposited or invested, as the case may be under sub-section (3), and the interest accrued on it, shall be paid to the child or adolescent in whose favour such amount is credited, in such manner as may be prescribed.

Explanation:-- For the purposes of appropriate Government, the Central Government shall include the Administrator or the Lieutenant Governor of a Union territory under article 239A of the Constitution.

14C.

Rehabilitation of rescued child or adolescent

The child or adolescent, who is employed in contravention of the provisions of this Act and rescued, shall be rehabilitated in accordance with the laws for the time being in force.

14D.

Compounding of offences

(1)

Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), the District Magistrate may, on the application of the accused person, compound any offence committed for the first time by him, under sub-section (3) of section 14 or any offence committed by an accused person being parent or a guardian, in such manner and on payment of such amount to the appropriate Government, as may be prescribed.

(2)

If the accused fails to pay such amount for composition of the offence, then, the proceedings shall be continued against

such person in accordance with the provisions of this Act.

(3)

Where any offence is compounded before the institution of any prosecution, no prosecution shall be instituted in relation to such offence, against the offender in relation to whom the offence is so compounded.

(4)

Where the composition of any offence is made after the institution of any prosecution, such composition shall be brought in writing, to the notice of the Court in which the prosecution is pending and on the approval of the composition of the offence being given, the person against whom the offence is so compounded, shall be discharged.

15.

Modified application of certain laws in relation to penalties

(1)

Where any person is found guilty and convicted of contravention of any of the provisions mentioned in sub-section (2), he shall be liable to penalties as provided in sub-sections (1) and (2) of section 14 of this Act and not under the Acts in which those provisions are contained.

(2)

The provisions referred to in sub-section (1) are the provision mentioned below :

(a)

section 67 of the Factories Act, 1948 (63 of 1948);

(b)

section 40 of the Mines Act, 1952 (35 of 1952);

(c)

section 109 of the Merchant Shipping Act, 1958 (44 of 1958); and

(d)

section 21 of the Motor Transport Workers Act, 1961 (27 of 1961).

16.

Procedure relating to offences

(1)

Any person, police officer or inspector may file a complaint of the commission of an offence under this Act in any Court of competent jurisdiction.

(2)

Every certificate as to the age of a child which has been granted by a prescribed medical authority shall, for the purposes of this Act, be conclusive evidence as to the age of the child to whom it relates.

(3)

No Court inferior to that of a Metropolitan Magistrate or a Magistrate of the first class shall try any offence under this Act.

17.

Appointment of Inspectors

The appropriate Government may appoint Inspectors for the purposes of securing compliance with the provisions of this Act and any Inspector so appointed shall be deemed to be a public servant within the meaning of the Indian Penal Code (45 of 1860).

17A.

District Magistrate to implement the provisions

The appropriate Government may confer such powers and impose such duties on a District Magistrate as may be necessary, to ensure that the provisions of this Act are properly carried out and the District Magistrate may specify the officer, subordinate to him, who shall exercise all or any of the powers, and perform all or any of the duties, so conferred or imposed and the local limits within which such powers or duties shall be carried out by the officer as may be prescribed.

17B.

Inspection and monitoring

The appropriate Government shall make or cause to be made periodic inspection of the places at which the employment of children is prohibited and hazardous occupations or processes are carried out at such intervals as it thinks fit, and monitor the issues, relating to the provisions of this Act.

18.

Power to make rules

(1)

The appropriate Government may, by notification in the official Gazette and subject to the condition of previous publication, make rules for carrying into effect the provisions of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a)

the conditions and the safety measures under clause (b) of sub-section (2) and other activities under clause (b) to Explanation of sub-section (2) of section 3;

(b)

the term of office of, the manner of filling casual vacancies of, and the allowances payable to, the Chairman and members of the Child Labour Technical Advisory Committee and the conditions and restrictions subject to which a non-member may be appointed to a sub-committee under sub-section (5) of section 5;

(c)

number of hours for which a child may be required or permitted to work under sub-section (1) of section 7;

(d)

grant of certificates of age in respect of young persons in employment or seeking employment, the medical authorities which may issue such certificate, the form of such certificate, the charges which may be made there under and the manner in which such certificate may be issued:

Provided that no charge shall be made for the issue of any such certificate if the application is accompanied by evidence of age deemed satisfactory by the authority concerned;

(e)

the other particulars which a register maintained under section 11 should contain.

(f)

the manner of payment of amount to the child or adolescent under sub-section (4) of section 14B;

(g)

the manner of composition of the offence and payment of amount to the appropriate Government under sub-section (1) of section 14D;

(h)

the powers to be exercised and the duties to be performed by the officer specified and the local limits within which such powers or duties shall be carried out under section 17A.

19.

Rules and notifications to be laid before Parliament or State legislature

(1)

Every rule made under this Act by the Central Government and every notification issued under section 4, shall be laid as soon as may be after it is made or issued, before each House of Parliament, while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or notification or both Houses agree that the rule or notification should not be made or issued, the rule or notification shall thereafter have effect only in such, modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or notification.

(2)

Every rule made by a State Government under this Act shall be laid as soon as may be after it is made, before the Legislature of that State.

20.

Certain other provisions of law not barred

Subject to the provisions contained in section 15, the provisions of this Act and the rules made there under shall be in addition to, and not in derogation of, the provisions of the Factories Act, 1948 (63 of 1948), the Plantations Labour Act,

1951 (69 of 1951) and the Mines Act, 1952 (35 of 1952).

21.

Power to remove difficulties

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the official Gazette, make such provisions not inconsistent with the provisions of this Act as appear to it to be necessary or expedient for removal of the difficulty: Provided that no such order shall be made after the expiry of a period of three years from the date on which this Act receives the assent of the President.

(2)

Every order made under this section shall, as soon as may be after it is made, be laid before the Houses of Parliament.

22.

Repeal and savings

(1)

The Employment of Children Act, 1938 (26 of 1938), is here-by repealed.

(2)

Notwithstanding such repeal, anything done or any action taken or purported to have been done or taken under the Act so repealed shall, in so far as it is not inconsistent with the provisions of this Act, be deemed to have been done or taken under the corresponding provisions of this Act.

23.

Amendment of Act 11 of 1948

In section 2 of the Minimum Wages Act, 1948,--

(i)

for Clause (a), the following clauses shall be substituted, namely:?

?(a) 'adolescent' means a person who has completed his fourteenth year of age but has not completed his eighteenth year;

(aa)

?adult? means a person who has completed his eighteenth year of age;?

(ii)

after Clause (b), the following clause shall be inserted, namely,?

"(bb) 'child' means a person who has not completed his fourteenth year of age;".

24.

Amendment of Act 69 of 1951

In the Plantations Labour Act, 1951,?

(a)

in section 2, in clauses (a) and (c), for the word "fifteenth", the word "fourteenth" shall be substituted;

(b)

section 24 shall be omitted;

(c)

in section 26, in the opening portion, the words "who has completed his twelfth year" shall be omitted.

25.

Amendment of Act 44 of 1958

In the Merchant Shipping Act, 1958, in section 109, for the word "fifteen", the word "fourteen" shall be substituted.

26.

Amendment of Act 27 of 1961

In the Motor Transport Workers Act, 1961, in section 2, in Clauses (a) and (c), for the word "fifteenth", the word "fourteenth" shall be substituted.

(See section 3A)

(1)

Mines.

(2)

Inflammable substances or explosives.

(3)

Hazardous process.

Explanation.-- For the purposes of this Schedule, "hazardous process" has the meaning assigned to it in clause (cb) of the Factories Act, 1948 (63 of 1948).

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